customer to switch providers.

2. THE INVESTIGATIVE ACTIVITY CARRIED OUT

The Authority, in exercising the powers conferred by Articles 157 and 158 of the Code, conducted inspection activities in collaboration with the Special Privacy and Technological Fraud Unit of the Guardia di Finanza, following a complaint received by the same Unit from a reporter of the television program “Striscia la notizia,” Mr. XX.

In summary, the complaint described a phenomenon already known to the Authority, namely the activities of abusive call centers (operating without formal assignment from clients and often unregistered with the Register of Communication Operators – ROC, an obligation instead required for all call center operators) in possession of demographic lists of individuals to be contacted by phone to propose the activation of telephone or energy services (gas and electricity), including through switching from one provider to another.

In particular, based on information received from a former operator of one of the call centers involved in this investigation, the complaint brought to light improper practices for procuring contracts in the energy and gas sector carried out by M.G. Company s.r.l., with its registered office in Fiumicino and operational offices in Rome, Fiumicino, Ladispoli, and Terracina, and Diemme Group of Di Vico Luigi.

Regarding M.G. Company, the former call center operator – who provided the information subject to the complaint anonymously – reported having been a collaborator of the same company and having received, for his services, remuneration from Diemme Group.

The operational scheme used by M.G. Company to have potential customers sign supply contracts was described as follows:

a) use of contact lists: the call center operators of M.G. Company had lists of customers who had switched their electricity and/or gas supply from one provider to another (so-called switch-out customer lists) and proceeded to contact them to convince them to sign a new contract with the energy company of the moment (in this case, Acea Energia S.p.A.);

b) representation of non-existent technical issues in the transition from the “outgoing” provider to the “incoming” provider: to overcome skepticism and induce the contacted individuals to activate a supply with Acea Energia, the call center operators represented to the potential customer that the supplier change operation, which they had recently completed, would lead to issues, particularly because the two providers involved in the supply change would require the “meter holder,” according to Acea Energia operators, to provide details of the consumption for the same month. This, according to the operators' representation, would result in double billing from the two companies involved (the one being deactivated and the new one being activated) to the detriment of the customer;

c) presentation of the solution: the call center operator would then propose to the customer the solution of a “technical return” to Acea Energia “for the time necessary to resolve the issue and align the supplies.” This return would occur under extremely advantageous tariff conditions (with a 40% discount) due to the inconveniences suffered;

d) sending a door-to-door agent for the signing of the contract proposal: once the potential customer was convinced to accept the proposed solution, the call center operator would schedule an appointment with what was referred to as an “Acea representative.” This representative would then go to the customer's home, not before having received via WhatsApp from the operator the audio file of the phone conversations conducted, and there proceed to cancel all active contracts and sign a new contract with Acea Energia. The sending of the audio file was specifically intended to inform the runner (i.e., the door-to-door salesperson) of the fictitious arguments used over the phone to convince the customer to switch providers.

potential customer in order to adopt more credible interactions during the home visit. The activity as described, through the Individual Company Stefanelli Federica (formally the point of contact with Acea Energia), has led to the registration on the systems of Acea Energia S.p.A. a volume of contracts amounting to approximately 11,500 supply points in 2022, approximately 13,700 in 2023, and approximately 1,330 in the first three months of 2024, generating commissions of approximately 480,000 euros for 2022 and approximately 1,500,000 euros in 2023.

From the investigations carried out by the Guardia di Finanza, intertwining and connections emerged between various commercial enterprises (not limited to those indicated in the complaint) and individuals that appeared unequivocally attributable to the activities of contract procurement for the activation of energy service supplies in favor of different companies. In light of the information gathered, the Authority has ordered the conduct of inspection checks against the following subjects (inspection activities carried out simultaneously on March 26, 2024, by personnel from the Guardia di Finanza and the Authority):

1) M.G. Company s.r.l., at the registered office in Fiumicino (via dei Delfini 1, at the store under the name “Energia e non solo…”) and at the operational offices in Latina (piazza dell’Agorà, premises under the name M.G. Company s.r.l.), Terracina (piazza Gregorio Antonelli 14/16) and Ladispoli (via delle Rose 12-14-16);
2) Diemme Group of Di Vico Luigi, at the store under the name “Energia e non solo…” located in Rome, via Carlo Zucchi n. 13/15, whose premises are owned by the company Elanim s.r.l., whose sole partner is Mr. Di Vico Luigi, premises that are rented to M.G. Company s.r.l., which in turn has granted use to Diemme Group;
3) Individual Company Stefanelli Federica, with tax domicile in Terracina and place of business activities in Fiumicino, via Brunelleschi 47, where Elanim s.r.l. also has its registered office, a company whose sole partner is Mr. Di Vico Luigi (also the owner of Diemme Group). Ms. Stefanelli has declared to carry out promotional contacts through “door-to-door mandate on behalf of Acea from July 4, 2022, to date”;
4) M&M; s.r.l.s., with legal and operational headquarters in Terracina, piazza Gregorio Antonelli 14/16, also operational headquarters of M.G. Company s.r.l.;
5) Individual Company XX, in the offices of Turin, which were not operational: XX was operationally linked to both M.G. Company s.r.l. and Di Vico Luigi, from whom he received remuneration in the context of the activity of “business procurer without prevalence”;
6) Acea Energia S.p.A., at the registered office of piazzale Ostiense n. 2, Rome.

Based on the findings that emerged during the activities of March 26, 2024, at the company M.G. Company, the Authority ordered further investigations against the companies Fer-Energy Call s.r.l. and Fer-Energy s.r.l., inspection activities carried out on March 29, 2024, respectively, at the offices in Rome, viale Palmiro Togliatti n. 1613 and Civitavecchia, via delle Azalee snc.

2. THE CONTESTATION OF VIOLATIONS

2.1. General Overview

The overall investigations led to consider the activities carried out by the various inspected subjects and the numerous collaborators revolving around them, as unequivocally aimed at realizing a massive procurement of energy service supply contracts through illicit means. These contracts were found to be largely directed towards the energy company Acea Energia S.p.A., which was able to rely, from 2020 to 2021, on the collaboration of M.G. Company s.r.l. The interruption of the collaboration with M.G. Company, which formally occurred in March 2021, was in fact resumed in the second half of 2022 through the Individual Company Stefanelli Federica (whose owner had been a collaborator of M.G. Company from 2019 to 2022) which, between 2022 and 2024, transmitted to the energy company Acea a volume of contracts relating to approximately 27,000 supply points invoicing over two million euros in commissions.

Despite the indicated turnover in formal collaboration relations with Acea Energia, the inspection investigations allowed for the detection of the substantial continuity of contract procurement activities, an activity that had its organizational center in the offices of M.G. Company located in Terracina, piazza Gregorio Antonelli 14/16. It should also be noted that what emerged from the inspection investigations appeared to be attributable to a tested organization capable of identifying specific points of vulnerability in the control system of telemarketing activities and making the reconstruction of the chain of responsibility more complex due to the mixing of roles, figures, skills, companies, sales points, and locations, based on which every place that was subject to inspection was found to host multiple companies with different roles even if often constituted by the same individuals.

This makes the phenomenon even more alarming when considering that the personal data of each customer, who believed in good faith they were signing a contract with one of the commercial structures of a specific energy company, passed between multiple subjects, mostly lacking the main security measures suitable to guarantee the confidentiality of particularly relevant information, such as, for example, those related to payment methods. What emerged from the inspection investigations carried out by the Guardia di Finanza, moreover, has allowed for...
to outline an extremely serious and alarming framework
in relation to the complex activities carried out by
M.G. Company s.r.l., D.I. Stefanelli Federica, Diemme Group of Di Vico Luigi, and Fer-Energy s.r.l., activities that have materialized
in the promotion of services of energy companies
(in particular, for the part that is relevant here, Acea
Energia S.p.A.).
In relation to the company Fer-Energy Call s.r.l.,
although the involvement in the above-described system has not been highlighted,
an unlawful use of switch-out lists has nonetheless been established,
which the other company in the group, Fer-Energy s.r.l.,
procured through unlawful means and communicated to the various
involved companies. In these latter relationships, the
figure of Mr. XX emerged as the person who maintained
contacts with individuals who, upon request,
provided the lists of customers in
switch-out. At the time of the inspection checks, Mr. XX held the role of special attorney of
Fer-Energy s.r.l. and that of legal representative
of Fer-Energy Call s.r.l.
The Office, on October 4, 2024, therefore proceeded
to send the communication initiating the
proceeding pursuant to Article 166 of the Privacy Code (hereinafter “notice of contestation”) no. 116132/24,
proposing specific hypotheses of violation, detailed
below, for the companies M.G. Company s.r.l., Fer-Energy s.r.l., Fer-Energy Call s.r.l., and for the Individual Firms Stefanelli Federica and Diemme Group.
It is specified that, limited to Diemme Group, the notification of the notice of contestation was renewed on October 31, 2024, due to the
unavailability of the owner at the previously identified locations. The notice of contestation
is to be understood as fully reported here.

2.2. M.G. Company S.r.l.
The company has been charged with violations
of Articles 5, paragraph 1, letter a) and paragraph 2, Articles 6, 13,
and 14 of the Regulation, as well as Article 130, paragraph 3
of the Code, as it emerged that it was the
organizational and decision-making center of
an organization aimed at making a significant
number of promotional calls, resulting in
contractual activations, using
personal data lists of illicit origin in the absence of
an adequate legal basis for the related processing of
personal data. In fact, it has not been documented
that the data subjects, whose personal data were
present in these lists, had expressed - from
the moment of collection - an adequate consent for the
processing for promotional purposes and for the

communication of their data to third parties, and no other
legal basis has been found applicable in the described case, nor has it been established that, at least at the time
of the promotional contact, the data subjects had
received from the company an adequate notice regarding
the data processing carried out and to be carried out.
The company has also been charged with
violations of Articles 5, paragraph 1, letter f), 28, and 32
of the Regulation, as on one hand, despite the
processing carried out in relation to the agency contract in place between Acea Energia and the Individual Firm Stefanelli Federica and those delegated to
its own collaborators (employees and Diemme Group of Di
Vico Luigi), there were no acts of
designation as data processor.
On the other hand, it has been found that M.G. Company had
access to the corporate databases of Acea Energia S.p.A.
in the absence of specific access credentials
attributed to it by virtue of its role and its
data processing activity; such accesses were
carried out by various call center operators
using a single access credential that was not
its own but referred to individuals qualified as
agents of Stefanelli (such as XX).

2.3. Individual Firm Stefanelli Federica
The Authority has, first of all, charged D.I.
Stefanelli Federica with the violation of Article 157 of the
Code in relation to Article 58, paragraph 1, letter a) and
Article 31 of the Regulation, as Ms.
Stefanelli stated that in no case were the
activities of customer procurement on behalf of
Acea Energia carried out by her through
sales channels other than “door-to-door”,
despite it having emerged that the same D.I. Stefanelli
Federica had signed mandates with call centers
that exclusively carried out contact activities
by telephone (moreover in an
unlawful manner).
Furthermore, violations of Articles 5, paragraph 1,
letter f), 28, and 32 of the Regulation have also been charged to D.I. Stefanelli Federica, as on one hand, there were no
designations as external or sub-processors of the
companies and individuals who actually carried out
the customer procurement activities processing the
related personal data; on the other hand, D.I.
Stefanelli Federica allowed unauthorized individuals to access
the corporate databases of Acea Energia S.p.A. through
authentication credentials of portal XX that were found
to be formally attributed to its agents.

2.4. Fer-Energy s.r.l.
The company Fer-Energy s.r.l. has been charged with
violations of Articles 2, 5, paragraphs 1, 6, 7, and 13 of
the Regulation for having purchased lists of personal data

without having verified the correct collection of the personal data contained therein, as well as for having transferred such data to M.G. Company s.r.l. and to the other company in the group (Fer-Energy Call s.r.l.), without having previously provided the necessary information to the data subjects and obtained from them the required consent for the communication of the data.

2.5. Diemme Group of Di Vico Luigi
The Authority has charged the company Diemme Group of Di Vico Luigi with violations of Articles 2, 5, paragraphs 1, 6, 7, and 13 of the Regulation for having processed data
Personal data included in customer registries of the energy market - involved in switch-out operations - in the absence of an appropriate legal basis and prior information to the interested parties.

2.6. Fer-Energy Call s.r.l.
Also regarding Fer-Energy Call s.r.l., the Authority contested the violation of Articles 2, 5, paragraphs 1, 6, 7, and 13 of the Regulation for having processed personal data included in customer registries of the energy market - involved in switch-out operations - in the absence of an appropriate legal basis and prior information to the interested parties.

3. THE DEFENSES OF THE COMPANIES
Almost all the companies involved (except for Diemme Group) exercised their respective right of defense by submitting defensive memoranda and, in some cases, also requesting access to the investigative documents, an extension of the deadlines for defenses, and to be heard in special hearings.
In particular, the company M.G. Company, after reviewing the investigative documents and obtaining the requested extension of the deadlines for the submission of memoranda, articulated its defenses with a note dated November 15, 2024 (prot. n. 135122/24 of November 18, 2024) in which the company stated the following:
- regarding the violation of Articles 5, paragraph 1, letter a), 6, 7, and 13 of the Regulation, as well as Article 130 of the Code: the company declared that “the contact lists are nothing more than lists of names extracted from public lists, therefore no violation of the GDPR can exist”;
- regarding the violation of Articles 5, paragraph 1, letter a), 6, 7, 28, and 29 of the Regulation: the company clarified that “between Federica Stefanelli and MG Company on 01/1/24 a regular mandate contract and appointment as data processor were signed”;
- regarding the violation of Article 28 of the Regulation: the company noted the generality of the allegation made by the Authority, specifying, in any case, the existence of the “appointment of data processor dated 01/1/24” in relation to the mandate with another energy company;
- regarding the violation of Articles 5, paragraph 1, letter f) and 32 of the Regulation: the company stated, firstly, that “due to the contract signed between Federica Stefanelli and MG Company on 01/1/24, no unauthorized access to Acea's systems would have been made by MG Company” and, moreover, that “MG Company has in fact never accessed Acea's database and this is not evidenced by the inspection activity carried out by the GdF”.
On December 11, 2024, a hearing request was held in which the company wanted to clarify and specify certain circumstances - attaching documentation proving the statements made - and, in particular:
- that Acea Energia S.p.A. continued to maintain direct relations with M.G. Company through Ms. XX, Sales Manager of the Mass Market of Acea Energia, even after the termination of the agency contract that occurred in 2021;
- that the company accessed Acea Energia's CRM using the credentials that had formally been issued to D.I. Stefanelli Federica and this circumstance was known to the energy company itself;

- that Acea Energia was also aware of the use of switch-out lists by M.G. Company, lists that are easily available online to the extent that M.G. Company believed - not unlawfully - in their use;
- that D.I. Stefanelli was unaware of the methods by which M.G. Company, through its call centers, operated to conclude contracts subsequently uploaded to Acea Energia's portal;
- that after the news of the inspection activities, the company was stripped of its only existing mandate and, consequently, finds itself in a state of inactivity with a severe financial impact;
- that, having taken note of the situation that emerged from this investigation, it turned to a consulting firm to modify its operational methods and make them compliant with current regulations.

D.I. Stefanelli Federica submitted her defenses with a note dated November 4, 2024 (prot. n. 129019/24) in which:
- regarding the violation of Article 31 of the Regulation: she claimed to have provided “all requested clarifications as per the minutes”;
- regarding the violation of Article 28 of the Regulation: she noted the generality of the allegation made by the Authority, specifying, in any case, that “with MG Company SRL on 01/1/24 a regular mandate contract and appointment as data processor of personal data were signed”;
- regarding the violation of Articles 5, paragraph 1, letter f) and 32 of the Regulation: she clarified that she had “a regular mandate from Acea Energia S.p.A. and was authorized to access their IT systems for the entry of contractual data”.

Furthermore, D.I. Stefanelli Federica contested the passage of the initiation act in which it is stated as follows: “It is significant, in this regard, that Ms. Stefanelli requested that the inspection activities could be carried out “at the offices of MG Company S.r.l. located in Terracina (LT) at Piazza Gregorio Antonelli n. 14”. On this point, she clarified that “that morning it was decided, in agreement with the GdF operatives, to go to the offices of MG Company […] because there I could be heard and at the same time the minutes could be drafted with the computer”.

Finally, regarding the methods by which M.G.

Company contacted users (through its own call centers), Ms. Federica Stefanelli stated that she was unaware of this “as the undersigned only engaged in door-to-door sales.” Furthermore, on December 11, 2024, a hearing request was held in which Ms. Stefanelli wanted to clarify and specify certain circumstances, in particular:

1. **That she had never received training on personal data protection from Acea;**
2. **That she had always conducted door-to-door activities and “knew nothing about the teleselling and telemarketing activities that were carried out, as far as she was aware from the results of the inspection activities of March 26, 2024, by MG Company with which the energy company Acea had direct relations.” This also relates to the activities carried out at the Latina office of M.G. Company managed by her collaborator Mr. XX; in fact, considering the small size of her company and her personal conditions, Ms. Stefanelli was never able to follow the activities carried out by Mr. XX who operated as a freelancer with considerable experience in the sector;**
3. **Regarding the inadequate response to information requests, Ms. Stefanelli provided detailed clarifications and documented her personal situation which, at the time of the inspection assessment, could have made some statements appear not completely exhaustive. The party reiterated that she had no intention of hiding anything or obstructing the operations of the Guardia di Finanza;**
4. **That she closed her business (with the closure of the VAT number) after the inspections in March 2024 and is currently employed as a collaborator at a sports center.**

The company Fer-Energy submitted its defense note on November 4, 2024 (protocol no. 129426/24 of November 5, 2024) stating, in general terms, that the contested behaviors were not attributable to it and arguing in particular that:

1. **The activities described in the initiation of the procedure did not fall within its corporate purpose;**
2. **The “transfer of lists” - which, from the documents obtained, was found to be carried out by Mr. XX - was an activity “exclusively for the benefit of Fer-Energy Call S.r.l.,” even though he was employed by Fer-Energy. In fact, according to the party, “the sending activities carried out by Mr. XX […] did not fall within the duties assigned to him by Fer-Energy S.r.l. Furthermore, within the “Appointment of the data

processing manager pursuant to and for the purposes of Regulation (EU) 679/2016" (produced during the inspection), the processing operations entrusted to him and authorized concern Fer-Energy S.r.l. the duties he performed and, specifically, exclusively the above-mentioned back office activities";**
3. **"The systematic and programmatic nature of the sending of personal data lists in favor of M.G. Company (the main company involved, along with Diemme Group of Di Vico Luigi, in the alleged 'coercive' activation activities of Acea Energia supplies) must be excluded. As established by the Authority itself, in fact, the small and occasional volume of exchanges with M.G. Company (equal to 3 emails) testifies to the non-participation of the Company in the alleged list transfer system, in which the other actors involved in the inspection activity operate";**
4. **The statements made by Ms. XX (legal representative of M-G. Company) regarding "a periodic sending of lists in her favor, finds no confirmation in the evidence found by this Authority."**

The company Fer-Energy Call S.r.l. also submitted its defense note on November 4, 2024 (protocol no. 129520/24 of November 5, 2024) stating that:

1. **The involvement of Fer-Energy Call in the activities of M.G. Company would be due to a misunderstanding related to "the fact that it was found to operate in the same building as M.G. Company (Ladispoli headquarters). This circumstance could have suggested the existence of the Company's involvement in the contested activity";**
2. **The company "does not have operational call centers except for the one in Rome, located at Viale Palmiro Togliatti 1613 and therefore did not carry out its activities in locations other than those mentioned above, let alone in proximity to the premises of M.G. Company located in Ladispoli";**
3. **"Fer-Energy Call did not have any sub-agency relationship with M.G. Company and otherwise it could not be, given that the two companies operated within the same commercial sector";**
4. **The company "has never operated on behalf of Acea Energia S.p.A.";**
5. **"It is clear that the Company has never participated, in any way, nor has it 'contributed' (see Communication, p. 16, par. 3, first paragraph), even in the slightest, to the activities of procurement and forced signing of contracts, brought to the attention of this Authority with the complaint mentioned above."**

Lastly, it appears that the D.I. Diemme Group of Di Vico Luigi has not submitted any defense memorandum, despite the formal notification of the contested act.

4. AUTHORITY EVALUATIONS

The defensive arguments presented by the parties involved in the investigation do not allow for the exclusion (except for some limited violations indicated below) of their responsibility regarding the violations contested against each of them for the following reasons, to be considered together with the observations already expressed in the referenced act of
Contestation.
4.1 M.G. Company S.r.l.
The investigative activities carried out by this Authority have allowed for the establishment of the central role of M.G. Company, which, using lists of users of illicit origin obtained through its relationships with Mr. XX, engaged in telephone contact activities for marketing and teleselling purposes using fraudulent and misleading methods. Thanks to these operational methods, the company induced unsuspecting individuals to sign a significant number of contracts that, through the former collaborator Ms. Federica Stefanelli, were loaded onto the systems of Acea Energia S.p.A. for a total of approximately 11,500 supply points in 2022, about 13,700 in 2023, and approximately 1,330 in the first three months of 2024. The Office was able to verify, through sampling, that indeed some of the names included in the lists acquired from the company during the inspection were registered in the Acea systems.
Furthermore, the commingling of activities and the transfer of some collaborators from the company to the "employment" of D.I. Federica Stefanelli delineate a substantial continuity of M.G. Company's activities in procuring contracts for Acea Energia; ultimately, after the termination of the formal relationship with Acea Energia, the company was able to benefit from the mandate acquired by its former employee (Ms. Stefanelli, specifically), subsequently coordinating the activities of the agents

who "formally" transitioned to collaborate with D.I. Federica Stefanelli.
In this context, the role of two of the "collaborators" of D.I. Federica Stefanelli (namely Ms. XX and Mr. XX), who were operating as managers of two call centers of M.G. Company (respectively in Ladispoli and Latina) at the time of the inspections, is also framed.

4.1.1 Contact Lists

The processing of personal data of users carried out by the company was found to be in violation of Article 5, paragraph 1, letter a), and paragraph 2, of Articles 6, 13, and 14 of the Regulation, as well as Article 130, paragraph 3 of the Code.
In fact, from the evidence collected during the inspection, it emerged that the company was the organizational and decision-making center of a significant number of promotional calls, resulting in contractual activations, using lists of illicit origin and in the absence of an appropriate legal basis.
Firstly, it was verified that the lists were sent (by Mr. XX, an employee of Fer Energy s.r.l., on behalf of the owner at the time, Mr. XX) to some collaborators of M.G. Company without the legality of their origin being demonstrated or verified; the same methods by which the lists were transmitted from one party to another - first via email and then, following an audit by a commissioning company, via Telegram - are also indicative of the lack of transparency of such operations, a lack of transparency that is further evidenced by the fictitious arguments used by call center operators to convince users to sign contracts, in addition to the fact that the numbers used to make promotional contacts were not registered with the Register of Communication Operators (ROC), established at the Authority for Communications Guarantees (AGCOM), a requirement for all call centers intending to engage in telemarketing or teleselling activities.
In particular, Ms. XX, the legal representative and administrator of M.G. Company s.r.l., specified that the company engaged in telephone contact activities for promotional purposes based on contact lists of users in the energy market who had recently switched from one operator to another (switch-out lists). These lists were provided, as mentioned, by the owner of Fer-Energy s.r.l., Mr. XX, through a collaborator, Mr. XX, who "forwarded" them to some contacts at the call centers of M.G. Company in Latina and Ladispoli for subsequent telephone contact activities. The provision of lists was compensated to Fer-Energy s.r.l. through operations involving the exchange of collaborators and the reversal of commissions, a method far from conventional.
Regarding the origin, Ms. XX stated verbatim that "regarding the origin of these lists, Mr. XX always maintained the utmost confidentiality, telling me that they came from a person whose name could not be disclosed [later identified as Mr. XX, operating in the energy sector]. At that moment, I became aware that the processing of the aforementioned lists was not entirely lawful."
Despite the awareness of the illicit origin of the lists, the company continued to use them, making telephone contacts in ways that, as will be seen later, proved to be fraudulent and misleading.
The lists, acquired during the investigations(1), contain user information such as phone number, tax code, POD number, PDR number, and meter serial number, as well as payment methods for bills.
Such evidence, part of which comes directly from M.G. Company through the legal representative, fundamentally contradicts the assertion present in the defenses of the same company that the lists would be of lawful origin as they derive from public lists. It is evident, to say the least, that the majority of the information present in the lists (starting from the POD number, PDR number, and meter serial number, to the information on payment methods indicated by customers at the time of contract activation) is not
freely available, but rather known only to a limited circle of subjects (territorially competent energy distribution companies and energy companies with which supply contracts have been activated) as they are necessary for the execution of the contracts themselves. Moreover, even in the event that the lists were actually taken from public records (a circumstance disproven by the evidence), the processing activity carried out by the company would still not have been lawful, both due to the fraudulent content of the calls (in this regard, over 7,300 recordings of calls made by M.G. Company operators have been obtained, which attest to the fraudulent methods indicated above), and due to the lack of information pursuant to Articles 13 and 14 of the Regulation.

From another perspective, it is not documented that the individuals whose personal data were present in these lists had expressed - from the moment of collection - adequate consent for promotional purposes and for communication to third parties, and no other legal basis appears applicable in the described case. On the contrary, the manner in which the calls were made provided reasonable certainty that the promotional contacts were generated by processing not supported by any legal basis. Similarly, it does not appear that, at least at the time of the promotional contact, the individuals had received from the company adequate information regarding the data processing, given that the informational scripts found in M.G. Company's call centers were entirely misleading and inadequate to make the individuals understand not only the actual scope of the overall data processing but also the very necessity of proceeding with the activation of a contract with Acea Energia. Moreover, a correct informational notice would have revealed the radically unlawful nature of the processing carried out (through the acquisition of personal data lists of unknown origin containing information regarding the switch-out operations that the company could not lawfully know) and it is therefore reasonable to believe that for this reason as well, M.G. Company omitted such compliance.

Regarding the aforementioned scripts, in fact, during the inspection at the call center of M.G. Company s.r.l. in Latina, some copies of the aforementioned document used to communicate with potential customers were found on the operators' desks. From the reading of these scripts, it is evident that the promotional calls were set up by the call center operators representing to the customer that the requested supplier change (switch-out) had caused the emergence of fictitious inconveniences: "We are contacting you from the distribution of Rome Acea, regarding the switch from... to... Okay, I imagine they have also informed you that in the free market there is a timing of 60 days that must be respected clearly by the company with which you are going to sign the contract. We are contacting you today, ma'am, because this timing has not been respected by the incoming manager who prematurely sent the consumption request here in distribution already in the month of... when you were clearly still active with… You understand well, ma'am, that as distribution and owners of the meters we cannot issue two bills related to the same month nor can you as a customer pay the same consumption with both companies. Do you follow me? In these cases, the distributor, therefore Acea, intervenes to protect the customer. To resolve this, we need to restore the supply; let me explain how we will work on the practice […] in order for this entire situation to be restored, it is necessary for Acea to take over the supply, so we need to bring the supply back directly to the origin, directly to Acea distribution, you will be activated in this case with a minimum state rate, therefore a rate not sellable to the public, it is precisely an Acea Start offer, as you can see from the name it is a starting rate, we are talking about €0.10 for electricity and €0.35 for gas […]. In order to insert the Acea practice, ma'am, therefore the Acea contract, you do not need to do anything; I will follow you […] you just need to provide me with your email, a readable photo of your identity document or driver's license front and back, and the POD so I can also verify the electricity […]. After the acceptance of the contract (via email or SMS), you will receive a call from 06 directly from Acea; it is a recorded call, they must always say yes, even if asked if we went there in person." On this point, Mr. XX, present at the Latina office of the company, confirmed that the same script was in use at the call center, although it was being updated to create a "commercially more suitable version."

Furthermore, the verification activities allowed for the acquisition of a significant number of recordings of the calls made at the call centers of M.G. Company in Latina and Ladispoli, which were found archived at the individual operators' stations, along with the contact lists described above. The sample examination of the audio files obtained in the records (over 7,300) confirmed that the content of the promotional calls followed the outline described in the script and also highlighted how a significant number of promotional contacts quickly turned into harassment and insults towards those customers who were skeptical or otherwise unwilling to adhere to the solutions proposed by the operator.

As for the operational methods for making promotional phone contacts, at the Ladispoli call center, the use of the same outgoing number - 06/81925747 - was verified.
used by the call center in Latina and provided by the company RebelNet). Furthermore, some calls were made by the call center in Ladispoli using mobile numbers assigned to certain operators,

specifically 3500079114, 3505906224. As mentioned, all the indicated numbers were not registered with the ROC.

As a result of the phone contact, users who were willing to sign the new contract were visited at home by the so-called runners (operators who physically presented themselves to the user in the manner described in the introduction) for the finalization, thus transforming a de facto telephone sale into a “door-to-door” sale. From what was learned during the on-site investigations, this “door-to-door” sales method was later accompanied by the conclusion of the contract directly over the phone. This was possible because the manager of the call center in Ladispoli (Ms. XX, and before her Mr. XX until the end of 2023) had a personal account to access the XX system of Acea Energia, with the ability to initiate the direct activation procedure of the contract; this procedure required the user to communicate via WhatsApp to the call center operator the OTP code received on their mobile phone and their identity document.

During these investigations, the same call center operators present at the inspected locations were interviewed, who, after proper identification, confirmed the above and, in particular, that they used the fictitious arguments described and also presented themselves with fictitious names. It was also possible to verify how the activations of supply contracts, in some cases, were carried out by the same operator in a very short time frame, despite these activations concerning different customers located far apart from each other. This is evidence that the activities mentioned above were not carried out in a “door-to-door” manner but remotely, in violation of the contractual provisions binding the client to the agency.

4.1.2 Designation as Data Processor/Sub-Processor

The activities aimed at concluding contracts in favor of Acea Energia by M.G. Company were carried out in the absence of a designation as data processor/sub-processor and, therefore, in violation of Articles 5, paragraph 1, letter a), 6, 7, 28, and 29 of the Regulation. In fact, it emerged that M.G. Company operated, in fact, as a sub-agent in relation to the agency contract stipulated between Acea Energia and D.I. Stefanelli Federica. Regarding this sub-agency relationship, and the related processing of personal data, M.G. Company did not receive a formal designation nor did it designate its own collaborators (employees and Diemme Group of Di Vico Luigi) based on what is provided for in Articles 28 of the Regulation and 2-quaterdecies of the Code.

On this point, despite Acea Energia's contrary statements, it emerged that the latter maintained direct relations with M.G. Company through its employee Ms. XX, to the extent of providing M.G. Company’s collaborators with access credentials to Acea Energia's systems and identification badges always referring to the energy company, all through the formal intermediary of D.I. Stefanelli. Acea Energia admitted only to being aware that a certain number of employees of M.G. Company, after the termination of the contractual relationship with it (a circumstance only reported but not proven), had become runners (collaborators) of D.I. Stefanelli Federica, among whom were also Ms. XX and Mr. XX who, at the time of the inspections, were operating within the structures of M.G. Company as managers of two call centers.

These missed designations, far from being a mere formal non-compliance, represent the framework of legality for the processing of the data of the interested parties, which, in this specific case, was found to be completely absent. Furthermore, these omissions have created a situation of confused delineation of responsibilities within the processing, making the illicit activities of the various parties involved in the matter difficult to identify and control by the interested parties and also by the clients.

On this point, M.G. Company stated that the relationship with D.I. Stefanelli Federica was governed by a contract signed year by year from 2022 to 2024, with the related appointment as data processor. Regarding the relationships with Diemme Group of Di Vico Luigi, M.G. Company initially contested an alleged generality of what was reported by the Authority so much so that “it did not allow the undersigned to exercise their right of defense,” as it would not have been clear “in concrete terms the subject ‘holder and/or processor of the data’ to which the GPDP refers.”

In this regard, M.G. Company also added that, in any case, “the appointment of the data processing

officer dated 01/1/24 in relation to the mandate" of another energy company is evident. What is reported in the company's defenses is irrelevant to the contestation of this Authority. From the first perspective, it should be clarified that, regardless of the ownership of the processing, which is still attributable to the companies in whose interest the contracts are stipulated (in this sense, see provision no. 230 of June 15, 2011, at www.gpdp.it, web doc. no. 1821257), what matters, in this case, is that M.G. Company was not identified as a sub-agent by a legal act of the same content as that binding Acea Energia and D.I. Stefanelli Federica and that of such
Circumstance of Formal Acknowledgment by Acea Energia, Data Controller

Moreover, although the "business procurement assignment" signed by M.G. Company with D.I. Stefanelli Federica outlined certain marginal aspects of personal data protection (art. 9) suggesting a future designation of M.G. Company as "external data processor," such designation does not appear to have ever materialized. In fact, the only document related to the aforementioned contract is titled "Appointment of Data Processing Officer pursuant to Legislative Decree No. 196/2003," which is an act provided for by the legislation prior to the entry into force of the Regulation and refers to a natural person (in this case, Ms. XX, who was the legal representative of M.G. Company at the time) and not to the Company.

Furthermore, to the extent that the contracts are signed in the interest of Acea Energia, any designations as data processors by energy companies other than this one (in this case, there was mention of a mandate with another energy company, a competitor of Acea Energia) could not legitimize the company to lawfully carry out the contested processing during the present investigation.

4.1.3 Access to Acea Systems

M.G. Company has been found to have violated the provisions regarding security, as per articles 5, paragraph 1, letter f) and 32 of the Regulation, as it accessed the systems of Acea Energia using access credentials actually assigned to D.I. Stefanelli Federica or, more accurately, to collaborators whom Acea had registered as belonging to D.I. Stefanelli Federica.

Indeed, M.G. Company s.r.l., as previously represented and confirmed by the company itself during the hearing, appears to have accessed the corporate databases of Acea Energia S.p.A. despite the absence of a contractual relationship with that company and without being registered by the same as a data processor or sub-processor. It is documented that the operators of M.G. Company were authorized to independently enter the data of the interested parties (illegally contacted) without having received personal credentials linked to M.G. Company, instead using the credentials assigned by Acea Energia to other individuals.

From a preliminary perspective, this is confirmed by the statements made during the inspection by the head of the call center in Ladispoli of M.G. Company (XX) regarding the contracts signed by the customers involved in the switch-out operations, who stated that "the signing/conclusion of the contract no longer occurs in paper form but by entering the customers' data directly into the aforementioned Acea portal, which, to validate the aforementioned entry, sends an OTP directly to the mobile number provided by the customer. I clarify that the data entry occurs simultaneously with the call made by the operator through the CRM of M.G. Company S.r.l., on which the data of the subjects to be contacted is present, loaded by myself and/or by XX from the Latina office. The customers' identity documents are sent by them via WhatsApp to the mobile service numbers of the operators for subsequent loading into the ACEA portal."

Also, the operators present in the call center, despite not having their own access credentials to the Acea Energia portal, confirmed that "if the customer is interested, [...], I propose that they sign a PDC [contract proposal] with Acea. To finalize the PDC, I load the customer's data into Acea's back-office, with a confirmation OTP sent by Acea to the customer's mobile. I also load a copy of the customer's identity document, which they send to me via WhatsApp to the service mobile number"; "during the calls, I heard that the operators, presenting themselves as Acea Distribution, talk about problems with the meters for the activation of the contract by the incoming seller, which would have caused a billing block, resolvable only by Acea. I saw that contracts can be activated by the agency by entering the data into Acea's back office and the copy of the identification document, sent via WhatsApp by the customer to the service mobile number, with an OTP sent to the customer's mobile."

Furthermore, at the Ladispoli office, a total of 10,312 screenshots related to the checks carried out by each of them regarding the supply point and the reliability of the customers were found at the various workstations of different operators; this operation was materially carried out by accessing the platform "aceaspa.force.com" not with the individual operators' own credentials, but by using the same account referred to Mr. XX.

This circumstance proves that M.G. Company, despite not having existing contractual relationships with Acea Energia for contract procurement activities and data entry, as confirmed by the company owner herself ("Our Company carried out this activity for XX from October 2021 until the end of 2022. Subsequently, from January 2023 until now, with XX"), systematically accessed the Acea Energia customer portal between the spring of 2021 and the spring of 2024, to enter contracts, confirm activations, and input copies of identity documents provided by customers, improperly and widely using the authentication credentials assigned by Acea Energia to individual operators.

4.2 Individual Company Stefanelli Federica

The investigative activities carried out by this Authority in relation to D.I. Stefanelli Federica have allowed for the ascertainment of the role of terminal in a system managed in the manner indicated above for the...
the main proceedings of M.G. Company. Such activities allowed D.I. Stefanelli Federica to upload onto the Acea portal a volume of contracts amounting to approximately 11,500 supply points in 2022, approximately 13,700 in 2023, and approximately 1,330 in the first three months of 2024, for a total amount of commissions received from Acea Energia S.p.A. of approximately €485,000 in 2022 and approximately €1,500,000 in 2023.

It is also noted that for the year 2023, the commissions recognized by Acea Energia constituted the total revenues of D.I. Stefanelli Federica. This circumstance suggests that D.I. Stefanelli Federica did not engage in any economic activity beyond that commissioned by Acea Energia. Lastly, during the hearing, Ms. Stefanelli stated that she:
- had received from Acea Energia, first, the suspension of her agent position and, subsequently, in April 2024, the termination of the contract for just cause;
- had ceased the economic activity previously carried out (as evidenced by documentation submitted to the records confirming the closure of the VAT number) informing the Office that she is currently employed, as an employee, at a sports facility.

4.2.1 Cooperation with the Regulatory Authority
From the evidence collected during the investigative phase, it emerged that the statements of D.I. Stefanelli Federica regarding the methods of concluding contracts with Acea Energia through "door-to-door" methods are in contrast with what emerged from the checks carried out at M.G. Company, particularly regarding the knowledge of the use of contact lists used for the contracting of users during the operator change phase. It follows that the conduct of the party constitutes a violation of Article 157 of the Code in relation to Article 58, paragraph 1, letter a) and Article 31 of the Regulation.

Indeed, Ms. Stefanelli stated during the inspection checks that in no case had the activities of soliciting customers on behalf of Acea Energia been carried out through sales channels other than "door-to-door" or been preceded by telephone contacts, while it clearly emerged that D.I. Stefanelli Federica had signed a mandate with M.G. Company, which exclusively carried out contact activities via telephone (in the illicit forms described above).

In particular, Ms. Stefanelli herself stated that "the identification of the company is made based on the knowledge that the customer may have of a certain supplier in the area where the activity is carried out. The mandate is 'door-to-door' so neither I nor my present collaborators, as well as XX (VAT number XX) and XX (VAT number XX), use any call center for the identification of companies or subjects for the realization of contracts, but we carry out the search door to door."

However, from the investigative checks, it emerged that for the conclusion of contracts in favor of Acea Energia, D.I. Stefanelli Federica was assisted, among others, by M.G. Company and Mr. XX, as evidenced by the contracts for business solicitation signed by the individual firm in the context of its activity as a direct agent of Acea Energia.

Mr. XX, present at the Latina office of M.G. Company during the inspection activities on March 26, 2024, stated that he is "the manager of this Latina office that carries out telemarketing activities. I operate here by virtue of the mandate signed with Ms. Stefanelli Federica." Furthermore, he specified that "with reference to the call center of this Latina office, I can provide an approximate estimate regarding the activity of the last year: the monthly calls are about 6,000 and the contracts signed are about 150/200 per month" and that "the call center collaborators, at the first contact, introduce themselves as subjects calling on behalf of the commissioning energy company."

Additionally, at the Fiumicino office of M.G. Company, Ms. XX confirmed that "the activity is based on the proposal of offers from Acea Energia or XX, through telephone contacts," also specifying that "the signing/conclusion of the contract no longer occurs in paper form but by entering the customers' data directly into the aforementioned ACEA portal, which, to validate the aforementioned entry, sends an OTP directly to the mobile number provided by the customer."

Moreover, Ms. Stefanelli's statements contradict the fact that contact user lists were found at the M.G. Company offices, as well as what emerged during the inspection carried out by the Guardia di Finanza, which found "useful indications to locate in the 'Google Drive' of the individual firm, shared among the operators, Mr. XX and Ms. Stefanelli, lists of users who have switched from one energy operator to another."

It follows that, within the agency contract with Acea Energia, the contracts concluded through D.I. Stefanelli Federica were found to have been concluded through telephone methods via the call center activities carried out by M.G. Company, also through Mr. XX, a direct collaborator of D.I. Stefanelli Federica, and Ms. XX. This conclusion is also confirmed by the sample checks carried out by the Office regarding the names listed in the contact lists found at M.G. Company; in particular, as already stated, a significant portion of these names were found in the contract proposals produced by Acea Energia and uploaded into the systems within the agency contract with D.I. Stefanelli.

In light of such evidence, during the requested hearing, Ms. Stefanelli referred to
treatment but also to the data processors, to implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk. The D.I. Stefanelli Federica, by allowing unauthorized individuals to access the databases of Acea Energia S.p.A., has failed to comply with these obligations.

4.2.4 Conclusion
In light of the above, it is confirmed that the D.I. Stefanelli Federica has violated the provisions of the GDPR, specifically Articles 28 and 32, as well as Article 157 of the Code. The lack of proper designation of external data processors and the failure to implement adequate security measures have resulted in a breach of the rights of the individuals concerned, thereby necessitating further action by the Authority to ensure compliance with data protection regulations.

The Authority will proceed with the necessary measures to address these violations and ensure that appropriate corrective actions are taken by the D.I. Stefanelli Federica and any other parties involved.
Processing, but also the data controller, to adopt
appropriate security measures to protect personal data that, in the specific case, should have been implemented through the introduction of specific controls on daily operations so that the collaborators of D.I. Stefanelli were not induced to share individual authentication credentials. It is undisputed that this did not happen if what was stated by the operators present in the call center of Ladispoli is true, who described how access to the back-office portal of Acea Energia by individuals without their own authentication credentials constituted an ordinary practice.

Therefore, the violation of the provisions regarding security as per Articles 5, paragraph 1, letter f) and 32 of the Regulation is established.

4.3 Fer-Energy s.r.l.

The investigative activities carried out by this Authority have allowed for the ascertainment of the role of Fer-Energy, primarily through Mr. XX, as a subject capable of providing lists of users who were in the process of changing suppliers (switch-out), lists that must be considered of illicit origin. The aforementioned conduct appears to have been carried out in violation of the regulations regarding the protection of personal data and has fueled a system characterized by tricks and deceptions that led unsuspecting individuals to sign a high number of contracts loaded onto the systems of Acea Energia S.p.A.

In particular, the evidence collected during the inspection, as well as the supplementary declaration dated April 10, 2024, from Fer-Energy itself, demonstrated that the aforementioned company processed the data of users contained in the lists received from an operator in the energy sector (Mr. XX) and subsequently communicated the same to M.G. Company s.r.l. and Fer-Energy Call s.r.l. in violation of Articles 5, paragraphs 1 and 2, 6, 7, and 13 of the Regulation.

It is necessary to clarify that the circumstance that Fer-Energy was allegedly unaware of the concrete operations of M.G. Company and the system represented above as a whole does not diminish its responsibility, nor does it allow for the downgrading of its role to a marginal profile. On the contrary, upon closer examination, the company constituted the initial piece that allowed M.G. Company to intercept unsuspecting users in the transition from one supplier to another, concretizing an illicit advantage in terms of the information to be used to make the objectively misleading context presented in the scripts found in the call centers, which were, moreover, disavowed by Acea Energia itself.

In fact, the company was not a party to any contract for the supply of customer lists with Mr. XX (nor could it have been given the information contained therein) and, similarly, no contract bound it to M.G. Company itself. Regarding this latter relationship, and to confirm the absence of formal contractual ties, the singularity of the methods by which the supply of lists was remunerated is highlighted, namely through operations involving the exchange of collaborators and the reversal of commissions. Furthermore, it should be noted that such unconventional methods of payment for the supply of lists raise doubts—among industry operators—about the legality of the overall operation.

As highlighted in the notice of contestation, it emerged that Fer-Energy, whose attorney was, at the time of the ascertainment, Mr. XX, purchased from a supplier—a natural person—lists of personal data without having verified the correct collection of the personal data contained therein but, rather, presumably being aware of the illegality of the operation, given all the "precautions" described for the conveyance and use of such lists. The Company then transferred such data both to Fer-Energy Call s.r.l., belonging to the same corporate group, and to M.G. Company s.r.l., and this, from a privacy perspective, without having previously provided the necessary information to the interested parties and obtained their required consent for the communication of data to third parties.

The company carried out the processing in question without having received, from the aforementioned companies, formal designations as data controller or sub-controller. The designations presented by Fer-Energy following the inspection activities, in fact, pertain to other contractual relationships for clients different from Acea Energia S.p.A., and it must be observed that, given the overall illegal conduct at its root, even a correct distribution of responsibilities within the processing would not have been able to remedy the contested violation profiles in any way.

The transfer of data therefore appears to have been carried out as an autonomous data controller, in the absence of specific consent on the matter and also of any other suitable legal basis.

On this point, the defenses of the company focus, first and foremost, on denying the attribution of the contested conduct to it, solely on the grounds that such conduct is outside its corporate purpose. In particular, Fer-Energy asserts that "it is already evident how the objectives and business strategies of Fer-Energy are radically distant from the materially pursued purposes of the other actors within the alleged general illicit system identified by the Authority and aimed at concluding contracts on behalf of the final service provider, which identifies, in the methods of telemarketing and teleselling, the main vehicle."

In support of what has been stated, the company concludes that "from the above statements and the inspection findings, it therefore appears immediately...
Evidence that Fer-Energy Call S.r.l., a call center authorized to carry out remote contact, is the main recipient as well as the beneficiary of the lists (specifically, in the person of XX, the owner of the computer on which the lists were found). In confirmation of this, the circumstance that the lists in the possession of Mr. XX were only comprised of gas customers [...] It can therefore be concluded that Fer-Energy Call S.r.l. is the company interested in the transfer of the lists and that Mr. XX, while being part of the corporate context of the Writer, carried out this activity exclusively for the benefit of Fer-Energy Call S.r.l. itself.

Furthermore, Fer-Energy stated that "to prove the Writer's estrangement from the context subject to the proceedings, the programmatic and systematic nature of the sending of personal data lists in favor of M.G. Company must be excluded [...] in fact, the small and occasional volume of exchanges with M.G. Company (equal to 3 emails) testifies to the non-participation of the Company in the alleged system of list transfer, in which the other actors involved in the inspection activity operate. What was stated by Ms. XX, who referred to a periodic sending of lists in her favor, finds no confirmation in the evidence found by this Authority."

The defenses of Fer-Energy are not suitable to overcome the objections raised by the Authority and, in any case, are based on a misinterpretation of what was contested. It must indeed be reiterated that the processing carried out by Fer-Energy, consisting of the collection, storage, and communication of personal data taken from switch-out lists in the energy market, is illicit at its root due to the nature and origin of the data processed, as well as for failing to comply with the provisions regarding information and consent, and under this aspect, the circumstance that the company was or was not aware of the ultimate purposes of the use of the transmitted personal data is of no relevance, nor whether it was part of the system described above and highlighted by the investigations.

In fact, what is relevant in this case is that Fer-Energy, through Mr. XX first, and Mr. XX later, acquired the lists of users in the switch-out phase from Mr. XX; these lists were subsequently communicated to other companies. More specifically, the statements of Mr. XX, an employee of Fer-Energy S.r.l., provided confirmations regarding the illicit origin of the lists: "I work as a simple employee at this company, the lists found through the searches you conducted are lists that were sent to me exclusively by Mr. XX. Mr. XX sends me lists of this kind periodically, almost monthly, from 2021 to today. My employer, Mr. XX, invited me at the time to contact him and have the lists you found sent to me. He himself, through short channels, indicates to whom to forward them. I keep the lists in a folder on my computer, always as indicated by my employer. I have sent the lists to all the people you found as recipients in the emails. The lists I possess are exclusively of gas customers."

Furthermore, Ms. XX, a representative of M.G. Company, stated verbatim that "since October 2021 we have started making calls based on the lists provided by Fer Energy focused on customers who were switching out (ALL. 2 – Folder “Mail” containing a subfolder named “XX” with the lists sent)." She also added the following: "I had a very confidential relationship with XX from Fer Energy. I asked him, by virtue of our interpersonal relationship, for the lists. He never sent me the lists directly, but tasked one of his collaborators in the company, namely XX, who periodically sent the lists to Ms. XX. This sending is still ongoing. Ms. XX, at my request, forwards them to Mr. XX (head of the telemarketing point in Latina), who uploads them to the company’s CCRM via transfer on Google Drive. The telephone operators at the telemarketing points in Ladispoli and Latina are my collaborators appointed with a letter of assignment [...]. The lists, besides being due to our very confidential relationship, were paid by me to Mr. XX with a reversal on the contracts made by us. Some of my agents, while always working for me, were coded for his agency (Fer Energy S.r.l.). The contracts they made brought him commissions that he was supposed to pass on to me by virtue of a private agreement. Of these commissions, he retained about twenty percent, which was never paid to me. This happened for every list that was sent to me and subsequently worked on. The lists until June 2022 arrived via email [...]. Then, by his admission, he switched to sending them via Telegram due to an internal audit received from XX. [...] Regarding the origin of these lists, Mr. XX always maintained the utmost confidentiality, telling me that they came from a person whose name could not be mentioned. At that moment, I became aware that the processing of the aforementioned lists was not entirely lawful."

These circumstances have also been corroborated by the evidence collected by the Authority and in any case have not been contested by Fer-Energy, which, as indicated, limited itself to asserting its estrangement from the system aimed at carrying out advertising calls in favor, among others, of Acea Energia. As for the alleged absence of systematicity of the sendings referred to by the company - recalling that the involved parties stated that the sendings were monthly and that many exchanges were made via Telegram for caution, having to
the interested parties involved.

As a consequence, it is considered that the volume of exchanges recorded in the documents is significantly underestimated - it is worth noting that at Fer-Energy itself, 761 emails were found sent or received by the employee Mr. XX, specifically:
- 334 exchanged with XX, mentioned in the documents and recognized by Fer-Energy itself as the broker of the switch-out lists;
- 424 exchanged with XX, head of the Fer-Energy Call s.r.l. office on Viale Palmiro Togliatti, Rome, regarding the request and/or receipt of lists, including those related to switch-out procedures, of contacts to be reached;
- 3 exchanged with XX of M.G. Company s.r.l. regarding contracts made.

Additionally, 2792 .excel/.csv/.pdf files were found, mostly containing user lists, and 2 Telegram chats between the owner of the company Mr. XX and another operator, also regarding list exchanges.

Furthermore, what Fer-Energy claims is decisively contradicted by the evidence collected at M.G. Company, where 79 emails were found exchanged between Mr. XX of Fer-Energy and Ms. XX of M.G. Company between October 2021 and November 2022 concerning the exchange of switch-out lists.

Moreover, the fact that the corporate purpose of Fer-Energy was unrelated to the operations under evaluation by the Authority is not sufficient to exclude, in itself, liability for the treatments mentioned above that were carried out in violation of the Regulation and the Code, but rather contributes to characterizing the conduct even more in illicit terms.

In summary, as clarified earlier, the collected evidence has confirmed that Fer-Energy processed personal data contained in the lists of contacts without having verified the correct collection of the personal data present therein, lacking a legal basis for the processing and being aware of the illicit origin of said lists, as well as having transferred such data to M.G. Company s.r.l. and Fer-Energy Call s.r.l., without any suitable legal basis and aggravating the prejudicial consequences for the interested parties.

4.4 Fer-Energy Call s.r.l.
The investigative activities carried out by this Authority have established the involvement of Fer-Energy Call, represented by Mr. XX, as a subject who, although not engaged in finalizing contracts in the interest of Acea Energia S.p.A., nonetheless used lists of users of illicit origin for its business activities in violation of data protection regulations.

In particular, the evidence collected during the inspections demonstrated that the company processed the data of users involved in switch-out operations in violation of Articles 5, paragraphs 1 and 2, 6, 7, and 13 of the Regulation.

Indeed, during the inspections, customer lists from the energy market were found on devices used by the company, some of which were expressly requested by the call center manager from Mr. XX of Fer-Energy. The company has not proven either the lawful acquisition and processing of these lists or the eventual information provided to the interested parties involved.

The company's defenses highlighted how "this Authority has extended its attention to Fer-Energy Call solely because it was found to operate in the same building as M.G. Company (Ladispoli headquarters)."

Furthermore, in further support of its alleged lack of involvement in the "system" under the attention of this Authority, the company specified that "Fer-Energy Call did not maintain any sub-agency relationship with M.G. Company and otherwise it could not be, given that the two companies operated in the same commercial sector (specifically, both engaged in telemarketing activities)."

In this case as well, the defenses of Fer-Energy Call are irrelevant and stem from an incorrect interpretation of what has been contested by this Authority.

From a first perspective, the involvement of the company is a consequence of what emerged from the statements of M.G. Company and the direct involvement of Mr. XX (at the time, special attorney of Fer-Energy and legal representative of Fer-Energy Call), all circumstances subsequently confirmed by what emerged from the inspections conducted on-site and the evidence collected.

Secondly, the processing of personal data present in the lists in question - starting from the "simple" storage - imposes a series of obligations on Fer-Energy Call (already mentioned above, regarding legal basis and information) that, in this case, were not respected, consequently determining the contested and established violations, regardless of its involvement or lack thereof in the system.

4.5 Diemme Group di Di Vico Luigi
The investigative activities carried out by this Authority have finally established violations of Articles 5, paragraphs 1 and 2, 6, 7, and 13 of the Regulation also by the individual company Diemme Group di Di Vico Luigi.

In particular, the indicated individual company declared that it carries out customer procurement activities on behalf of M.G. Company s.r.l., but without engaging in telemarketing activities.

However, at the Diemme Group headquarters, lists of customers from the energy market involved in switch-out operations were found, and the owner of the individual company could not prove the lawful origin of these lists, nor the provision of correct information to the interested parties involved.
sensitivity have been handled without the necessary safeguards, leading to a significant risk of harm to the data subjects involved.

5. COLLABORATION WITH OTHER INDEPENDENT ADMINISTRATIVE AUTHORITIES
Pursuant to Article 154, paragraph 4 of the Code, the Authority shall transmit this provision to the Authority for Competition and the Market (AGCM) and to the Authority for Communications Guarantees (AGCOM) due to the relevance of the conduct in their respective areas of competence.

6. CONCLUSIONS
Based on the above, the responsibility of D.I. Stefanelli Federica, M.G. Company s.r.l., Fer-Energy s.r.l., Fer-Energy Call s.r.l., and Diemme Group of Di Vico Luigi is deemed established in relation to the following violations:
a) D.I. Stefanelli Federica - Article 157 of the Code, Article 58, paragraph 1, letter a) and Article 31 of the Regulation, for failing to provide a complete response to a request for information and the exhibition of documents made by the Authority through the Guardia di Finanza, thus demonstrating a lack of full cooperation with the supervisory Authority;
b) D.I. Stefanelli Federica - Article 28 of the Regulation, for failing to make the required designations as data processing managers and for not communicating to the data controller the identification of its sub-agents as sub-processors;
c) D.I. Stefanelli Federica - Articles 5, paragraph 1, letter f) and 32 of the Regulation, for allowing unauthorized access to the IT systems of Acea Energia S.p.A.;
d) M.G. Company s.r.l. – Articles 5, paragraph 1, letter a), 6, 7, and 13 of the Regulation, as well as Article 130 of the Code, for having made promotional telephone contacts using lists of personal data acquired without specific consent and without providing prior information, for which the lawful methods of data collection and consent acquisition for commercial and promotional purposes have not been proven;
e) M.G. Company s.r.l. – Articles 5, paragraph 1, letter a), 6, 7, 28, and 29 of the Regulation, for having proceeded to have customers sign contract proposals for Acea Energia S.p.A., despite not being

designated as a responsible or sub-responsible party for data processing;
f) M.G. Company s.r.l. - Article 28 of the Regulation, for failing to make the required designations as data processing managers and for not communicating to the data controller and/or the data processor the identification of Diemme Group of Di Vico Luigi as a sub-processor;
g) M.G. Company s.r.l. - Articles 5, paragraph 1, letter f) and 32 of the Regulation, for having realized unauthorized access to the IT systems of Acea Energia S.p.A.;
h) Fer-Energy s.r.l. - Articles 5, paragraphs 1 and 2, 6, 7, and 13 of the Regulation for having acquired lists of personal data without having verified the proper collection of the personal data contained therein and the release by the data subjects of the necessary consent for the communication of their data to third parties, as well as for having communicated such data to multiple subjects without having previously provided the necessary information to the data subjects;
i) Fer-Energy Call s.r.l. and Diemme Group of Di Vico Luigi - for having acquired lists of personal data without having verified the proper collection of the personal data contained therein and the release by the data subjects of the necessary consent for the transfer of their data to third parties and without having previously provided the necessary information to the data subjects, in violation of Articles 5, paragraphs 1 and 2, 6, 7, and 13 of the Regulation;
Regarding Acea Energia, it is specified that it has been the subject of a separate proceeding.
Furthermore, it is useful to make some considerations regarding a "system" that, from the inspections carried out by the Guardia di Finanza and subsequent investigative activities, has allowed for the delineation of an extremely serious and alarming picture in relation to the complex of activities carried out by M.G. Company s.r.l., Diemme Group of Di Vico Luigi, and Fer-Energy s.r.l. aimed at the procurement, use, and dissemination of lists of users of illicit origin, as well as the promotion of services of energy companies (in particular, with respect to Acea Energia S.p.A.).
These activities have been found to be carried out with a constant disregard for the provisions regarding the protection of personal data, such that the entire framework of the processing carried out by the aforementioned companies has proven entirely inadequate to allow the data subjects to exercise the necessary control over their data, thereby violating the fundamental principles of fairness and transparency established to protect any processing.
The activities described above have been carried out in defiance of the provisions that allow for curbing the phenomenon of wild telemarketing and bringing to light the so-called "underbelly" that operates at the margins of the official sales networks of energy companies, given that the relationships between the various companies have proven to be indeterminate, vague, and lacking unequivocally correct references to the distribution of responsibilities for processing that the Regulation imposes pursuant to Articles 28 and 29.
As a result, extremely sensitive personal information has been handled without the necessary safeguards, leading to a significant risk of harm to the data subjects involved.
relevance have passed from hand to hand, without any guarantee regarding the correctness of the actions of the numerous parties involved and the security of the data processed, thus further fueling the sources of supply for wild telemarketing and generating a vicious cycle of nuisance calls and illegal contacts - characterized by deceitfulness and sometimes even involving threats and insults - entirely detached from the intent to offer the customer economically advantageous services and solely linked to the need to increase the numbers of calls, contracts signed, and profits made by the companies.

Having established the unlawfulness of the conduct of D.I. Stefanelli Federica, M.G. Company s.r.l., Fer-Energy s.r.l., Fer-Energy Call s.r.l., and Diemme Group of Di Vico Luigi concerning the treatments examined, it is necessary to:
- impose on D.I. Stefanelli Federica, M.G. Company s.r.l., Fer-Energy s.r.l., Fer-Energy Call s.r.l., and Diemme Group of Di Vico Luigi, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any processing of the data contained in the lists found at the various locations subject to inspection, as well as, should they intend to continue the described economic activity, the prohibition of using contact lists for which they cannot prove the lawfulness of their creation and the presence of appropriate consent for communication to third parties for promotional purposes; the retention of such lists is nonetheless permitted for the time strictly necessary to achieve other purposes such as the

exercise of the right of defense;
- adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against D.I. Stefanelli Federica, M.G. Company s.r.l., Fer-Energy s.r.l., Fer-Energy Call s.r.l., and Diemme Group of Di Vico Luigi of the administrative pecuniary sanction provided for by Article 58, paragraph 2, letter i) and Article 83, paragraphs 3 and 5, of the Regulation.

It is specified that, having noted the termination of the agency contract between Acea and D.I. Stefanelli and the cessation of the consequent related activities, it is no longer deemed appropriate, in this case, to order D.I. Stefanelli Federica and M.G. Company s.r.l., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to provide for the designation and the related communications referred to in Article 28 of the Regulation in relation, respectively, to the contract with Acea Energia S.p.A. and with Diemme Group of Di Vico Luigi.

By virtue of what is provided for by Article 154-bis, paragraph 3 of the Code, the publication of this provision on the Authority's website is proceeding (see also Article 37 of the internal regulation of the Guarantor No. 1/2019).

It is also noted that the conditions referred to in Article 17 of the Guarantor's Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met for the annotation of the violations noted here in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation.

Finally, it is recalled that, pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition order on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied administratively.

7. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, various provisions of the Regulation and the Code have been violated in relation to treatments of the same kind carried out by D.I. Stefanelli Federica, M.G. Company s.r.l., Fer-Energy s.r.l., Fer-Energy Call s.r.l., and Diemme Group of Di Vico Luigi, for which Article 83, paragraph 3, of the Regulation applies, according to which, if, in relation to the same treatment or related treatments, a data controller or a processor violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. It follows that in the case in question, the sanction provided for by Article 83, paragraph 5, of the Regulation must apply to each of the indicated subjects.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, while setting the maximum penalty at the sum of 20 million euros or, for companies with over 500 million euros in turnover, at 4% of the same, specifies the methods for quantifying the aforementioned sanction, which must “in any case [be] effective, proportionate, and dissuasive” (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the related amount.

In compliance with this provision, based on the information available in the latest available financial statements, or from the income information obtained, the first hypothesis provided for by the aforementioned Article 83, paragraph 5 applies, and therefore the maximum penalty for each of the above-mentioned subjects is quantified at 20 million euros.

For the quantification of the respective sanctions, the circumstances described below have been considered.

7.1 D.I. Stefanelli Federica

Aggravating factors:
1. the duration and severity of the violations, given that the individual firm indicated has committed the violations reported above from 2022 to 2024 (Article 83, paragraph 2, letter a), of the Regulation);

2. the severely negligent nature of the...
violations, since the sole proprietorship has demonstrated a failure to implement the necessary controls over the activities of its partners, aimed at acquiring energy supply contracts in total violation of personal data protection regulations (art. 83, par. 2, lett. b), of the Regulation);
3. the degree of responsibility of D.I. Stefanelli Federica, considering the total absence of adequate measures to ensure the correctness of the processing carried out and the respect of the basic rights of the data subjects (art. 83, par. 2, lett. d), of the Regulation);
4. the categories of data affected by the violation since the lists exchanged and used for promotional purposes, while not containing special categories of data, were nonetheless rich in information about electricity supply and payment methods that could potentially enable the activation of contracts without the involvement and awareness of the users, to their greater detriment (art. 83, par. 2, lett. g) of the Regulation);
5. the direct economic benefits of D.I. Stefanelli Federica, considering that the system of unlawful data processing allowed for the loading onto the systems of Acea Energia S.p.A. a volume of contracts amounting to approximately 11,500 supply points in 2022, about 13,700 in 2023, and about 1,330 in the first three months of 2024 for an economic value of approximately 480,000 euros in commissions in 2022 and about 1,500,000 euros in 2023 (art. 83, par. 2, lett. k), of the Regulation);
6. the manner in which the Authority became aware of the violations, considering that the investigation arose from a complaint filed with the Public Security Authorities (art. 83, par. 2, lett. h), of the Regulation).
Mitigating factors:
1. absence of previous relevant violations committed by D.I. Stefanelli Federica (art. 83, par. 2, lett. e), of the Regulation);
2. the fact that, following the described investigation, the activity of the company has definitively ceased and Ms. Stefanelli has undertaken a completely different work activity, making the repetition of the conduct impossible (art. 83, par. 2, lett. k) of the Regulation).
7.2 M.G. Company s.r.l.
Aggravating factors:
1. the duration and severity of the violations, since the indicated company has committed the above-mentioned violations for several years (art. 83, par. 2, lett. a), of the Regulation);
2. the number of affected data subjects and the high level of damage suffered by them, not only due to the threatening or mocking tones used by operators towards users who refused the offers, but also due to the misleading presentation of issues related to the activation of contracts to push the data subjects to accept the subscription of services unjustifiably presented as more advantageous (art. 83, par. 2, lett. a), of the Regulation);
3. the fraudulent nature of the violations, since the company has demonstrated that it knowingly processed personal data, unlawfully acquired, to induce, through deception and tricks, the data subjects to conclude new electricity supply contracts (art. 83, par. 2, lett. b), of the Regulation);
4. the measures taken by the company to mitigate the harm to the data subjects, which were completely and deliberately absent, resulting in damages for them from the conclusion of contracts that were not necessarily economically advantageous (art. 83, par. 2, lett. c), of the Regulation);
5. the categories of data affected by the violation since the lists exchanged and used for promotional purposes, while not containing special categories of data, were nonetheless rich in information about electricity supply and payment methods that could potentially enable the activation of contracts without the involvement and awareness of the users, to their greater detriment (art. 83, par. 2, lett. g) of the Regulation);
6. the economic benefits of the company, considering that the system of unlawful data processing allowed for the loading onto the systems of Acea Energia S.p.A., through D.I. Stefanelli Federica, a volume of contracts amounting to approximately 11,500 supply points in 2022, about 13,700 in 2023, and about 1,330 in the first three months of 2024 (art. 83, par. 2, lett. k), of the Regulation);
7. the manner in which the Authority became aware of the violations, considering that the investigation arose from a complaint filed with the Public Security Authorities (art. 83, par. 2, lett. h), of the Regulation).

Mitigating factors:
1. degree of cooperation with the supervisory authority, as the company demonstrated its collaboration in clarifying the origins of the unlawfully acquired lists as well as the direct relationships with Acea Energia despite the formal absence of contractual relationships (art. 83, par. 2, lett. f), of the Regulation);
2. absence of previous relevant violations committed by M.G. Company (art. 83, par. 2, lett. e), of the Regulation);
3. the fact that, following the described investigation, the Company recorded significant losses resulting from the interruption of contracts (art. 83, par. 2, lett. k) of the Regulation).
7.3 Fer-Energy s.r.l.
Aggravating factors:
1. the duration and severity of the violations, since the indicated company has committed the violations mentioned above for a duration of several years (art. 83, par. 2, lett. a), of the Regulation);
2. the intentional nature of the violations, since Fer-Energy s.r.l. has demonstrated systematic non-compliance with the regulations regarding personal data processing and, in particular, was aware of the unlawful origin of the user lists as well as the consequences arising from making such lists available to M.G. Company and Fer-Energy Call (art. 83, par. 2, lett. b), of the Regulation);
3. the measures adopted by the company that were completely absent (art. 83, par. 2, lett. c), of the Regulation);
4. the categories of data affected by the violation since the lists exchanged and used for promotional purposes, although not containing specific categories of data, were nonetheless rich in information about electricity supply and payment methods that could potentially enable the activation of contracts without the involvement and awareness of the users, to their greater detriment (art. 83, par. 2, lett. g) of the Regulation);
5. the degree of responsibility of the company, considering the absence of adequate measures to ensure the correctness of the processing carried out and the respect of the basic rights of the data subjects (art. 83, par. 2, lett. d), of the Regulation);
6. the manner in which the Authority became aware of the violations, considering that the investigation arose from a complaint filed with the Public Security Authorities (art. 83, par. 2, lett. h), of the Regulation).
Mitigating factor:
1. absence of relevant previous violations committed by Fer-Energy s.r.l. (art. 83, par. 2, lett. e), of the Regulation).
7.4 Fer-Energy Call s.r.l.
Aggravating factors:
1. the duration and severity of the violations, since the indicated company has committed the violations mentioned above for a duration of several years (art. 83, par. 2, lett. a), of the Regulation);
2. the negligent nature of the violations, since Fer-Energy Call s.r.l. has demonstrated negligence in the processing of personal data and, in particular, in obtaining user lists of unlawful origin (art. 83, par. 2, lett. b), of the Regulation);
3. the degree of responsibility of the company, considering the absence of adequate measures to ensure the correctness of the processing carried out and the respect of the basic rights of the data subjects (art. 83, par. 2, lett. d), of the Regulation);
4. the categories of data affected by the violation since the lists exchanged and used for promotional purposes, although not containing specific categories of data, were nonetheless rich in information about electricity supply and payment methods that could potentially enable the activation of contracts without the involvement and awareness of the users, to their greater detriment (art. 83, par. 2, lett. g) of the Regulation);
5. the manner in which the Authority became aware of the violations, considering that the investigation was extended to the company due to checks carried out at other economic entities (art. 83, par. 2, lett. h), of the Regulation).
Mitigating factor:
1. absence of relevant previous violations committed by Fer-Energy Call s.r.l. (art. 83, par. 2, lett. e), of

the Regulation).
7.5 Diemme Group di Di Vico Luigi
Aggravating factors:
1. the duration and severity of the violations, since the indicated company has committed the violations mentioned above for a duration of several years (art. 83, par. 2, lett. a), of the Regulation);
2. the negligent nature of the violations, since Diemme Group di Di Vico Luigi has demonstrated negligence in the processing of personal data and, in particular, in obtaining user lists of unlawful origin (art. 83, par. 2, lett. b), of the Regulation);
3. the degree of responsibility of the individual enterprise, considering the absence of adequate measures to ensure the correctness of the processing carried out and the respect of the basic rights of the data subjects and considering that no justification was provided regarding the possession and origin of the lists found during the investigation (art. 83, par. 2, lett. d), of the Regulation);
4. the manner in which the Authority became aware of the violations, considering that the investigation was extended to the company due to checks carried out at other economic entities (art. 83, par. 2, lett. h), of the Regulation).
Mitigating factor:
1. absence of relevant previous violations committed by Diemme Group di Di Vico Luigi (art. 83, par. 2, lett. e), of the Regulation).
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In an overall perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, it is essential to prudently evaluate the aforementioned criteria, also in order to determine a proportionate, adequate, and dissuasive sanction.
Therefore, it is believed that - based on the complex of the elements mentioned above - the following should be applied:
- to D.I. Stefanelli Federica the administrative sanction of paying an amount of 45,000.00 euros (forty-five thousand/00) equal to 0.225% of the maximum administrative sanction of 20 million euros. The sanction applied also takes into account that, due to the cessation of the individual enterprise, it directly affects a natural person;
- to M.G. Company s.r.l. the administrative sanction of payment of an amount of 200,000.00 euros (two hundred thousand/00) equal to 1% of the maximum administrative sanction of 20 million euros;
- to Fer-Energy s.r.l. the administrative sanction of payment of an amount of 500,000.00 euros (five hundred thousand/00) equal to 2.5% of the maximum administrative sanction of 20 million euros;
- to Fer-Energy Call s.r.l. the administrative sanction of payment of an amount of 75,000.00 euros (seventy-five thousand/00) equal to 0.375% of the maximum administrative sanction of 20 million euros;
- to Diemme Group di Di Vico Luigi the administrative sanction of payment of an amount of 30,000.00 euros (thirty thousand/00) equal to 0.15% of the maximum administrative sanction of 20 million euros. The sanction applied also takes into account that it effectively impacts an individual business.

In this context, it is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16 of the internal regulation of the Authority No. 1/2019, the accessory sanction of publishing this injunction order on the Authority's website should be applied to all, due to the seriousness and disvalue of the conduct, as well as the potential harm caused to a wide audience of interested parties, a circumstance that makes the broad dissemination of the provision necessary.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY
pursuant to Article 57, paragraph 1, letters a) and h), of the Regulation, declares the treatments described in the reasoning illegal, carried out by D.I. Stefanelli Federica, M.G. Company s.r.l., Fer-Energy s.r.l., Fer-Energy Call s.r.l., and Diemme Group di Di Vico Luigi; consequently:
a) imposes on Ms. Stefanelli Federica (in her capacity as legal representative pro tempore of the individual business of the same name), M.G. Company s.r.l., Fer-Energy s.r.l., Fer-Energy Call s.r.l., and Diemme Group di Di Vico Luigi, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any processing of the data contained in the lists found at the various locations subject to inspection, as well as, should they wish to continue the economic activity described, the prohibition of

using contact lists for which they cannot prove the legality; the retention of such lists is nonetheless permitted for the time strictly necessary to exercise the right of defense;
b) orders Ms. Stefanelli Federica (in her capacity as legal representative pro tempore of the individual business of the same name), M.G. Company s.r.l., Fer-Energy s.r.l., Fer-Energy Call s.r.l., and Diemme Group di Di Vico Luigi, pursuant to Article 157 of the Code and Article 58, paragraph 1, letter a) of the Regulation, to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken to implement the ordered measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS
Ms. Stefanelli Federica (C.F. XX), in her capacity as legal representative pro tempore of the individual business of the same name, to pay the sum of 45,000.00 euros (forty-five thousand/00);
M.G. Company s.r.l. (P.IVA 14169931004), with registered office in Fiumicino at Via dei Delfini No. 1, in the person of its legal representative, to pay the sum of 200,000.00 euros (two hundred thousand/00);
Fer-Energy s.r.l. (P.IVA 12923641000), with registered office in Rome at Via Vito Giuseppe Galati No. 100, in the person of its legal representative, to pay the sum of 500,000.00 euros (five hundred thousand/00);
Fer-Energy Call s.r.l. (P.IVA 14514361006), with registered office in Rome at Via della Giustiniana No. 990, in the person of its legal representative, to pay the sum of 75,000.00 euros (seventy-five thousand/00);
Diemme Group di Di Vico Luigi (P.IVA 02837820600), with registered office in Ceccano (Fr) at Viale Bruno Buozzi No. 7, in the person of its legal representative, to pay the sum of 30,000.00 euros (thirty thousand/00),
ALL as an administrative pecuniary sanction for the violations indicated in the reasoning; it is noted that the offenders, pursuant to Article 166, paragraph 8, of the Code, have the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

ORDERS
each of the subjects indicated, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the amount indicated for each above, according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the subsequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES
a) pursuant to Articles 154-bis of the Code and 37 of the internal regulation of the Authority No. 1/2019, the publication of this provision on the Authority's website;
b) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the internal regulation of the Authority No. 1/2019, the publication of the injunction order on the Authority's website;
c) pursuant to Article 17 of the internal regulation of the Authority No. 1/2019, the annotation in the internal register of the Authority, provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted;
d) pursuant to Article 154, paragraph 4 of the Code, the...
Transmission of this provision to the Authority for Competition and the Market (AGCM) and to the Authority for Communications Guarantees (AGCOM) due to the relevance of the conduct in their respective areas of competence.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, April 10, 2025

THE PRESIDENT
Stanzione

THE REPORTER
Ghiglia

THE ACTING SECRETARY GENERAL
Filippi

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1) At the offices of Terracina of the company M.G. Company s.r.l., a total of 149,592 records related to transitions from one provider to another were found, 171,571 records of users in the energy market, without the indication of the provider of belonging, and 16,489 records with the indication of the provider. At the call center in Latina, lists comprising 10,595,233 users involved in switch-out procedures, 97,551 records of users in the energy market, with the indication of the reference company, and 119,264 without such indication were found and acquired into the investigation records. At the Ladispoli office, there were found 140 files .excel/.csv/.txt containing lists of switch-out users, totaling 1,216,954 records; 34 files .excel/.csv/.txt containing lists of users with the indication of the belonging energy operator, totaling 1,012,436 records; 128 files .excel/.csv/.txt containing lists of users without the indication of any energy operator, totaling 87,701 records; all in relation to telephone contacts made since the year 2022 with users residing in the regions of Lazio and Campania and in the province of Turin. Furthermore, 381 files .excel/word containing lists of appointments made for the runners were found, totaling 60,978 records of potential clients, related to the years 2022 and 2023 and the city of Rome (only some files are related to the year 2024 and the cities of Turin and Latina); 41 files .excel/word containing lists of clients entered in the portals Acea Energia S.p.A., XX and XX, totaling 8,466 records, related to the years 2023 and 2024 and to residents in the Lazio region, particularly in the province of Rome; 770 image files received via WhatsApp in the year 2024 related to the identification documents of 386 clients; 74 files .excel containing the outcomes of telephone contacts made in the year 2023, totaling approximately 26,970 records of users residing mainly in the provinces of Rome and Turin; 11 files .excel related to the outcomes of "switch out" telephone contacts made in the years 2022, 2023, and 2024, totaling approximately 5,080 records of users; 30 files .excel reporting the outcomes of appointments held by the runners in the years 2022, 2023, and 2024, totaling approximately 34,015 records of individuals residing in the regions of Lazio and Campania and in the province of Turin; 10,312 screenshots related to the verification of the supply point and the reliability of the client ("Check Cerved") on the platform "ACEASPA.FORCE.COM". At the legal office in Fiumicino, 1,842 files .pdf related to contracts signed on behalf of Acea Energia S.p.A., XX, XX, and XX and attached identification documents of clients were found; 17 files .pdf containing lists of appointments made for the runners, totaling 328 records of potential clients; 20 files .pdf related to the identification documents of 400 clients; 6 files .excel/.csv/.txt containing lists of switch-out users, totaling 1,256 records; 4 files .excel/.csv/.txt containing lists of users with the indication of the belonging energy operator, totaling 2,164 records; 23 files .excel/.csv/.txt containing lists of users without the indication of any energy operator, totaling 7,330 records.